

Trump administration appeals judge's ruling barring troop deployment in Portland

PORTLAND, Ore. (AP) — President Donald Trump's administration on Friday appealed a ruling from a federal judge in Oregon that barred it from [deploying the National Guard](#) to Portland.

[The ruling last week](#) from U.S. District Court Judge Karin Immergut, a Trump appointee, followed a [three-day trial](#) in which both sides argued over whether protests at the city's U.S. Immigration and Customs Enforcement building met the conditions for using the military domestically under federal law. The city and state filed the lawsuit in September to block the deployment.

In a [106-page opinion](#), Immergut found that even though the president is entitled to "great deference" in his decision on whether to call up the Guard, he did not have a legal basis for doing so because he did not establish that there was a rebellion or danger of rebellion, or that he was unable to enforce the law with regular forces.

The administration criticized the decision and said the troops were needed to protect federal personnel and property in a city that Trump has described as "war ravaged."

"The district court's ruling made it clear that this administration must be accountable to the truth and to the rule of law," Oregon Attorney General Dan Rayfield said in an emailed statement Friday in response to the administration's appeal. "We will keep defending Oregon values and standing up for our state's authority to make decisions grounded in evidence and common sense."

Immergut issued two temporary restraining orders in early October that had blocked the deployment of the troops leading up to the trial. The first order blocked Trump from deploying 200 members of the Oregon National Guard; the second, issued a day later, blocked him from deploying members of any state's National Guard to Oregon, after he tried to evade the first order by sending California troops instead.

The 9th U.S. Circuit Court of Appeals has already ordered that troops not be deployed pending further action by the appeals court.

Democratic cities targeted by Trump for military involvement — including Chicago, which filed a separate lawsuit on the issue that is now before the U.S. Supreme Court — [have been pushing back](#). They argue the president has not satisfied the legal threshold for deploying troops and that doing so would violate states' sovereignty.